

26TRCV03042 26TRCV03042

County: los-angeles

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Case Number: 26TRCV03042 Hearing Date: July 9, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

JEREMY
D. BARTZ, PHD et al.,

Plaintiffs

Case No.:

25TRCV03042

vs.

[Tentative]
RULING RE:

MOTION
FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

HMAN

DESIGN & CONSTRUCTION, INC. et al.,

Defendants.

Hearing

Date: July 9, 2026

Department

P, Judge David K. Reinert

Motion

for Leave to File Third Amended Complaint

Moving

Party: Plaintiffs

Jeremy D. Bartz, PhD, Michelle Sangalang, and Arlene Martinez

Responding Party: None

RULING

The court

considered the moving papers. Plaintiffs' Motion for Leave to File a Third Amended Complaint is GRANTED.

PROCEDURAL BACKGROUND

On September 5, 2025, Plaintiffs Jeremy D. Bartz, PhD, Michelle Sangalang, and Arlene Martinez (collectively, "Plaintiffs") filed a complaint against Defendants HMAN Design & Construction, Inc., Hooman H. Shirazi, Ivan Aragundi, Perez Brother's Plastering, Ayala Framing, Inc., S&W Waterproofing, Abraham Flores, dba Fama Custom Tile, and DOES 1 through 25, inclusive, alleging five causes of action for: (1) Breach of Contract; (2) Violations of the Right to Repair Act; (3) Breach of Implied Warranty; (4) Negligence; and (5) Nuisance.

On January 12, 2026, Plaintiffs filed a first amended complaint against the same Defendants, alleging the same five causes of action in addition to a sixth cause of action for Fraudulent Concealment.

On April 16, 2026, Plaintiffs filed a second amended complaint ("SAC") against the same Defendants in addition to Defendant Jae H. Pak, dba Jaypak Construction (collectively, "Defendants"), alleging the same six causes of action.

On May 12, 2026, Plaintiffs filed an ex parte application to request leave to file a third amended complaint. On May 13, 2026, the court deemed Plaintiffs' application as the instant Motion for Leave to File a Third Amended Complaint.

FACTUAL BACKGROUND

Plaintiffs

allege that in May and October 2019, Plaintiffs Jeremy D. Bartz, PhD ("Bartz") and Arlene Martinez ("Martinez") each purchased newly constructed homes from Defendant HMAN Design & Construction, Inc. ("HMAN") pursuant to standard California Residential Purchase Agreements (the "Agreements"). (SAC, ¶ 15.) Plaintiffs allege that Bartz and Martinez purchased properties located at 2623 Nelson Avenue and 2203 Perkins Lane in Redondo Beach, California (the "Subject Properties"). (SAC, ¶ 15.) Plaintiffs allege that the Agreements included a New Construction Addendum subject to the California Right to Repair Act. (SAC, ¶ 15.)

Plaintiffs

allege that they discovered "pervasive water intrusion and physical damage," at the Subject Properties and requested that HMAN's principal, Defendant Hooman H. Shirazi ("Shirazi") repair the defects. (SAC, ¶ 16.) Plaintiffs allege that Shirazi did not offer to perform repair work himself and additional defects appeared while Shirazi made no offer to repair the defects. (SAC, ¶ 16.) Plaintiffs allege that in August 2025, HMAN was given an opportunity to inspect the Subject Properties and offer to repair the defects, but no inspection has occurred. (SAC, ¶ 21.)

Plaintiffs

allege that the total preliminary estimated cost to repair the defects and resulting damage at the Subject Properties is \$1,496,357.00. (SAC, ¶ 22.)

LEGAL STANDARD

Under Code of Civil Procedure Section 473(a)(1), “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., Section 576.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or

added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

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A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

DISCUSSION

Moving Party’s Argument

Plaintiffs seek to file a third amended complaint to add Nelson-Perkins Homeowners’ Association (the “HOA”) as a plaintiff, because Plaintiffs wish to assert claims arising from its statutory authority and responsibility to maintain, repair, and control the common areas of the Subject Properties. Plaintiffs argue that amendment is necessary because after they filed the SAC, Defendants produced discovery revealing that the Subject Properties are governed by a homeowners’ association, and the documents show that portions of

the damaged Subject Properties are common areas that are under the HOA's control. Plaintiffs argue that no party will be prejudiced because no Defendant has filed a responsive pleading to the SAC, and the amendment does not change the claims against Defendants.

Merits of the Motion

Plaintiffs seek to amend the SAC to add the Nelson Perkins Homeowners' Association (the "HOA") as a plaintiff and assert claims on its behalf. Plaintiffs state that after they filed the SAC, Defendants produced discovery revealing that the Subject Properties are governed by the HOA, and portions of the Subject Properties that have been damaged are common areas that are under the HOA's control. Therefore, Plaintiffs argue that the HOA has standing and must be joined in order to fully adjudicate Plaintiffs' claims.

Plaintiffs' counsel declares that upon receiving information in discovery revealing that certain damaged areas at the Subject Properties are common areas under the HOA's control, Plaintiffs "promptly prepared a Third Amended Complaint ("TAC") adding the HOA as a Plaintiff and asserting claims on its behalf." (Mass Decl., ¶¶ 5-6.) Plaintiffs' counsel further declares that while Plaintiffs previously attempted to file the TAC, the court clerk rejected the filing on the grounds that further amendment would require a court order. (Mass Decl., ¶ 7.) Plaintiffs' counsel declares that no Defendant has filed an answer or responsive pleading to the SAC, and the "only change in the TAC is the addition of the HOA as a Plaintiff and the inclusion of allegations regarding common area damage." (Mass Decl., ¶¶ 9-10.)

The court finds that Plaintiffs' motion substantially complies with the requirements of Rule 3.1324. Plaintiffs' motion shows that amendment is necessary to ensure that all interested parties are joined to fully adjudicate the claims against Defendants. Plaintiffs have provided a copy of the proposed TAC and Plaintiffs' counsel has explained that the only differences concern the addition of the HOA as a plaintiff and the inclusion of allegations regarding common area damage and does not otherwise substantially alter the causes of action alleged against Defendants. Given that the substance of the causes of action alleged against Defendants remains largely unchanged and Defendants have not yet filed a responsive pleading to the SAC, the court finds that Defendants will not be prejudiced by Plaintiffs' filing of their proposed TAC.

Accordingly, Plaintiffs' Motion for Leave to File a Third Amended

Complaint is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiffs' Motion for Leave to File a Third Amended Complaint is GRANTED.

Plaintiff is ordered to separately file the Third Amended Complaint and to serve each Defendant within 60 days.